

GORSUCH, J., dissenting

officials to fill in even a large number of details, to find facts that trigger the generally applicable rule of conduct specified in a statute, or to exercise non-legislative powers. Congress can also commission agencies or other experts to study and recommend legislative language. Respecting the separation of powers forecloses no substantive outcomes. It only requires us to respect along the way one of the most vital of the procedural protections of individual liberty found in our Constitution.

B

What do the government and the plurality have to say about the constitutional concerns SORNA poses? Most everyone, the plurality included, concedes that if SORNA allows the Attorney General as much authority as we have outlined, it would present “a nondelegation question.”⁸⁹ So the only remaining available tactic is to try to make this big case “small-bore”⁹⁰ by recasting the statute in a way that might satisfy any plausible separation-of-powers test. So, yes, just a few years ago in *Reynolds* the government represented to this Court that SORNA granted the Attorney General nearly boundless discretion with respect to pre-Act offenders. But *now*, faced with a constitutional challenge, the government speaks out of the other side of its mouth and invites us to reimagine SORNA as compelling the Attorney General to register pre-Act offenders “to the maximum extent feasible.” And, as thus reinvented, the government insists, the statute supplies a clear statement of legislative policy, with only details for the Attorney General to clean up.

But even this new dream of a statute wouldn’t be free from doubt. A statute directing an agency to regulate private conduct to the extent “feasible” can have many possible meanings: It might refer to “technological” feasibility, “economic” feasibility, “administrative” feasibility, or even “polit-

⁸⁹ *Ante*, at 136.

⁹⁰ *Ante*, at 147.

GORSUCH, J., dissenting

ical” feasibility. Such an “evasive standard” could threaten the separation of powers if it effectively allowed the agency to make the “important policy choices” that belong to Congress while frustrating “meaningful judicial review.”⁹¹ And that seems exactly the case here, where the Attorney General is left free to make all the important policy decisions and it is difficult to see what standard a court might later use to judge whether he exceeded the bounds of the authority given to him.

But don’t worry over that; return to the real world. The bigger problem is that the feasibility standard is a figment of the government’s (very recent) imagination. The only provision addressing pre-Act offenders, § 20913(d), says *nothing* about feasibility. And the omission can hardly be excused as some oversight: No one doubts that Congress knows exactly how to write a feasibility standard into law when it wishes.⁹² Unsurprisingly, too, the existence of some imaginary statutory feasibility standard seemed to have escaped notice at the Department of Justice during the Attorney General’s many rulemakings; in those proceedings, as we have seen, the Attorney General has repeatedly admitted that the statute affords him the authority to “balance” the burdens on sex offenders with “public safety interests” as and how he sees fit.⁹³

Unable to muster a feasibility standard from the only statutory provision addressing pre-Act offenders, the plurality invites us to hunt in other and more unlikely corners. It points first to SORNA’s “[d]eclaration of purpose,” which announces that Congress, “[i]n order to protect the public from sex offenders and offenders against children . . . establishes a comprehensive national system for the registration of those

⁹¹ *Industrial Union Dept., AFL-CIO v. American Petroleum Institute*, 448 U. S. 607, 676, 685–686 (1980) (Rehnquist, J., concurring in judgment).

⁹² See, e. g., 42 U. S. C. §§ 1310(b)(2)(C), 1383b(e)(2)(B); 20 U. S. C. § 3509; 49 U. S. C. § 24201(a)(1).

⁹³ 75 Fed. Reg. 81851–81852.

GORSUCH, J., dissenting

offenders.”⁹⁴ But nowhere is feasibility mentioned here either. In fact, this provision doesn’t purport to guide the Attorney General’s discretion at all. Instead, it simply declares what Congress believed the *rest* of the statute’s enacted provisions had already “establishe[d],” without the need for any action by the Attorney General. And by now surely we must all agree that broad and sweeping statements like these about “a statute’s ‘basic purpose’ are . . . inadequate to overcome the words of its text regarding the specific issue under consideration.”⁹⁵ While those adopting SORNA might have declared that they hoped and wished for a “comprehensive national system,” the fact remains that the law they actually adopted for pre-Act offenders leaves everything to the Attorney General. Hopes and dreams are not laws.

Besides, even if we were to pretend that § 20901 amounted to a directive *telling* the Attorney General to establish a “comprehensive national system” for pre-Act offenders, the plurality reads too much into the word “comprehensive.” Comprehensive coverage does not mean coverage to the maximum extent feasible. “Comprehensive” means “having the attribute of comprising or including much; of large content or scope,” “[i]nclusive of; embracing,” or “[c]ontaining much in small compass; compendious.”⁹⁶ So, for example, a criminal justice system may be called “comprehensive” even though many crimes go unpursued. And SORNA itself contains all sorts of coverage exceptions for *post-Act* offenders yet claims to comprehensively address them.⁹⁷ In the same way, no reason exists why SORNA might not also claim to address pre-Act offenders “comprehensively” even though the Attorney General is free to exercise his discretion to

⁹⁴ 34 U. S. C. § 20901. See also *ante*, at 141–142.

⁹⁵ *Mertens v. Hewitt Associates*, 508 U. S. 248, 261 (1993) (emphasis deleted).

⁹⁶ 3 Oxford English Dictionary 632 (2d ed. 1989).

⁹⁷ See, e. g., 34 U. S. C. §§ 20911(7)(A)–(B), (8), 20915(a), (b)(1).

GORSUCH, J., dissenting

forgo registration for some, many, or maybe all of them. The statute still “comprehensively” addresses these persons by indicating they must abide whatever rules an Attorney General may choose. In all these ways, SORNA might be said to address sex offenders past, present, and future in a way that “compris[es] or includ[es] much,” and that is “of large content or scope,” but in a way that nevertheless delegates important policy decisions to the executive branch.

Finding it impossible to conscript the statute’s declaration of purpose into doing the work it needs done, the government and plurality next ask us to turn to SORNA’s definition of “‘sex offender.’”⁹⁸ They emphasize that SORNA defines a “sex offender” as “‘an individual who *was* convicted of a sex offense’”—and, they note, pre-Act offenders meet this definition.⁹⁹ Because pre-Act offenders fall within the definition of “sex offender[s],” the government and plurality continue, it follows that the Attorney General must ensure all of them are registered and subject to SORNA’s demands.

That much, however, does not follow. To say that pre-Act sex offenders fall within the definition of “sex offenders” is merely a truism: Yes, of course, these people have already been convicted of sex offenses under state law. But whether these individuals are *also* subject to federal registration requirements is a different question entirely. And as we have seen, the only part of the statute that speaks to pre-Act sex offenders—§ 20913(d)—makes plain that they are *not* automatically subject to all the Act’s terms but are left to their fate at the hands of the Attorney General. Look at it this way: If the statute’s definitional section were really enough to command the registration of all sex offenders, the Act would have had no need to proceed to explain, as it does at great length, when *post*-Act sex offenders must register and when they need not.

⁹⁸ *Ante*, at 142–143.

⁹⁹ *Ibid.*

GORSUCH, J., dissenting

If that argument won't work, the plurality points us to § 20913(d)'s second clause, which grants the Attorney General the authority "to prescribe rules for the registration of . . . sex offenders . . . who are unable to comply" with the Act's initial registration requirements.¹⁰⁰ According to the plurality, this language suggests that Congress expected the Attorney General to register pre-Act offenders to the maximum extent feasible. But, of course, this clause, too, says nothing of the sort. And the authority provided under § 20913(d)'s *first* clause—which gives the Attorney General the blanket authority "to specify the applicability of the requirements of this subchapter"—is *additional to* the authority granted under the *second* clause. So not only does the Attorney General have the authority to prescribe rules for the registration of pre-Act offenders under the second clause, he is free to specify which statutory requirements he does and does not wish to apply under the first clause. Far from suggesting a maximalist approach then, the second clause read in light of the first only serves to underscore the breadth of the Attorney General's discretion.

With so little in statutory text to work with, the government and the plurality "can't resist" highlighting certain statements from the Act's legislative history.¹⁰¹ But "legislative history is not the law."¹⁰² Still less can committee reports or statements by individual legislators be used "to muddy clear statutory language" like that before us.¹⁰³ And even taken on their own terms, these statements do no more than confirm that some members of Congress hoped and wished that the Attorney General would exercise his discretion to register at least some pre-Act offenders. None of these snippets mentions a "feasibility" standard, and none can obscure the absence of such a standard in the law itself.

¹⁰⁰ *Ante*, at 144.

¹⁰¹ See *ante*, at 143–144.

¹⁰² *Epic Systems Corp. v. Lewis*, 584 U. S. 497, 523 (2018).

¹⁰³ *Milner v. Department of Navy*, 562 U. S. 562, 572 (2011).

GORSUCH, J., dissenting

That leaves the plurality and the government to try to fish its feasibility standard from our decision in *Reynolds*. But *Reynolds* would make a difference only if it bound us as a matter of *stare decisis* to adopt an interpretation inconsistent with the statute's terms. And, of course, it does no such thing. The government and the plurality submit that *Reynolds* was premised on an understanding that Congress intended the statute to apply to pre-Act offenders to the maximum extent feasible. To support their reading they point to *Reynolds*' surmise that Congress "may well have thought [that there could be] practical problems" with applying SORNA to pre-Act offenders and for that reason left their registration obligations to be sorted out by the Attorney General.¹⁰⁴ But speculation about some of Congress's motives in adopting §20913(d) aside, *Reynolds* plainly understood the statute itself as investing the Attorney General with sole power to decide whether and when to apply SORNA's requirements to pre-Act offenders.¹⁰⁵

*

Nothing found here can come as a surprise. In *Reynolds*, the government told this Court that SORNA supplies no standards regulating the Attorney General's treatment of pre-Act offenders. This Court agreed, and everyone proceeded with eyes open about the potential constitutional consequences; in fact, the dissent expressly warned that adopting such a broad construction of the statute would yield the separation-of-powers challenge we face today.¹⁰⁶ Now, when

¹⁰⁴ *Reynolds*, 565 U. S., at 440–441.

¹⁰⁵ *Id.*, at 445 (holding that "the Act's registration requirements do not apply to pre-Act offenders until the Attorney General so specifies"); *id.*, at 439 (rejecting argument that any SORNA requirements apply to pre-Act offenders "before the Attorney General validly specifies" they do); *id.*, at 440–441 (observing that the Attorney General might conclude that "different federal registration treatment of different categories of pre-Act offenders" is "warranted").

¹⁰⁶ See *id.*, at 450 (Scalia, J., dissenting).

GORSUCH, J., dissenting

the statute faces the chopping block, the government asks us to ignore its earlier arguments and reimagine (really, rewrite) the statute in a new and narrower way to avoid its long-predicted fate. No wonder some of us are not inclined to play along.

The only real surprise is that the Court fails to make good on the consequences the government invited, resolving nothing and deferring everything. In a future case with a full panel, I remain hopeful that the Court may yet recognize that, while Congress can enlist considerable assistance from the executive branch in filling up details and finding facts, it may never hand off to the nation's chief prosecutor the power to write his own criminal code. That "is delegation running riot."¹⁰⁷

¹⁰⁷ *Schechter Poultry*, 295 U. S., at 553 (Cardozo, J., concurring).

Syllabus

KNICK *v.* TOWNSHIP OF SCOTT, PENNSYLVANIA,
ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE THIRD CIRCUIT

No. 17–647. Argued October 3, 2018—Reargued January 16, 2019—
Decided June 21, 2019

The Township of Scott, Pennsylvania, passed an ordinance requiring that “[a]ll cemeteries . . . be kept open and accessible to the general public during daylight hours.” Petitioner Rose Mary Knick, whose 90-acre rural property has a small family graveyard, was notified that she was violating the ordinance. Knick sought declaratory and injunctive relief in state court on the ground that the ordinance effected a taking of her property, but she did not bring an inverse condemnation action under state law seeking compensation. The Township responded by withdrawing the violation notice and staying enforcement of the ordinance. Without an ongoing enforcement action, the court held, Knick could not demonstrate the irreparable harm necessary for equitable relief, so it declined to rule on her request. Knick then filed an action in Federal District Court under 42 U.S.C. § 1983, alleging that the ordinance violated the Takings Clause of the Fifth Amendment. The District Court dismissed her claim under *Williamson County Regional Planning Comm’n v. Hamilton Bank of Johnson City*, 473 U.S. 172, which held that property owners must seek just compensation under state law in state court before bringing a federal takings claim under § 1983. The Third Circuit affirmed.

Held:

1. A government violates the Takings Clause when it takes property without compensation, and a property owner may bring a Fifth Amendment claim under § 1983 at that time. Pp. 187–202.

(a) In *Williamson County*, the Court held that, as relevant here, a property developer’s federal takings claim was “premature” because he had not sought compensation through the State’s inverse condemnation procedure. 473 U.S., at 197. The unanticipated consequence of this ruling was that a takings plaintiff who complied with *Williamson County* and brought a compensation claim in state court would—on proceeding to federal court after the unsuccessful state claim—have the federal claim barred because the full faith and credit statute required the federal court to give preclusive effect to the state court’s decision. *San Remo Hotel, L. P. v. City and County of San Francisco*, 545 U.S. 323, 347. Pp. 187–189.

Syllabus

(b) This Court has long recognized that property owners may bring Fifth Amendment claims for compensation as soon as their property has been taken, regardless of any other post-taking remedies that may be available to the property owner. See *Jacobs v. United States*, 290 U. S. 13. The Court departed from that understanding in *Williamson County* and held that a taking gives rise not to a constitutional right to just compensation, but instead gives a right to a state law procedure that will eventually result in just compensation. Just two years after *Williamson County*, however, the Court returned to its traditional understanding of the Fifth Amendment, holding that the compensation remedy is required by the Constitution in the event of a taking. *First English Evangelical Lutheran Church of Glendale v. County of Los Angeles*, 482 U. S. 304. A property owner acquires a right to compensation immediately upon an uncompensated taking because the taking itself violates the Fifth Amendment. See *San Diego Gas & Elec. Co. v. San Diego*, 450 U. S. 621, 654 (Brennan, J., dissenting). The property owner may, therefore, bring a claim under § 1983 for the deprivation of a constitutional right at that time. Pp. 189–194.

(c) *Williamson County*'s understanding of the Takings Clause was drawn from *Ruckelshaus v. Monsanto Co.*, 467 U. S. 986, where the plaintiff sought to enjoin a federal statute because it effected a taking, even though the statute set up a mandatory arbitration procedure for obtaining compensation. *Id.*, at 1018. That case does not support *Williamson County*, however, because Congress—unlike the States—is free to require plaintiffs to exhaust administrative remedies before bringing constitutional claims. *Williamson County* also analogized its new state-litigation requirement to federal takings practice under the Tucker Act, but a claim for just compensation brought under the Tucker Act is not a prerequisite to a Fifth Amendment takings claim—it *is* a Fifth Amendment takings claim. *Williamson County* also looked to *Parratt v. Taylor*, 451 U. S. 527. But *Parratt* was not a takings case at all, and the analogy from the due process context to the takings context is strained. The poor reasoning of *Williamson County* may be partially explained by the circumstances in which the state-litigation issue reached the Court, which may not have permitted the Court to adequately test the logic of the state-litigation requirement or consider its implications. Pp. 194–198.

(d) Respondents read too broadly statements in prior opinions that the Takings Clause “does not provide or require that compensation shall be actually paid in advance of the occupancy of the land to be taken. But the owner is entitled to reasonable, certain and adequate provision for obtaining compensation” after a taking. *Cherokee Nation v. Southern Kansas R. Co.*, 135 U. S. 641, 659. Those statements concerned requests for injunctive relief, and the availability of subsequent compen-

Syllabus

sation meant that such an equitable remedy was not available. Simply because the property owner was not entitled to injunctive relief at the time of the taking does not mean there was no violation of the Takings Clause at that time. The history of takings litigation provides valuable context. At the time of the founding, there usually was no compensation remedy available to property owners, who could obtain only retrospective damages, as well as an injunction ejecting the government from the property going forward. But in the 1870s, as state courts began to recognize implied rights of action for damages under the state equivalents of the Takings Clause, they declined to grant injunctions because property owners had an adequate remedy at law. Congress enabled property owners to obtain compensation for takings by the Federal Government when it passed the Tucker Act in 1887, and this Court subsequently joined the state courts in holding that the compensation remedy is required by the Takings Clause itself. Today, because the federal and nearly all state governments provide just compensation remedies to property owners who have suffered a taking, equitable relief is generally unavailable. As long as an adequate provision for obtaining just compensation exists, there is no basis to enjoin government action effecting a taking. Pp. 198–202.

2. The state-litigation requirement of *Williamson County* is overruled. Several factors counsel in favor of this decision. *Williamson County* was poorly reasoned and conflicts with much of the Court’s takings jurisprudence. Because of its shaky foundations, the rationale for the state-litigation requirement has been repeatedly recast by this Court and the defenders of *Williamson County*. The state-litigation requirement also proved to be unworkable in practice because the *San Remo* preclusion trap prevented takings plaintiffs from ever bringing their claims in federal court, contrary to the expectations of the *Williamson County* Court. Finally, there are no reliance interests on the state-litigation requirement. As long as post-taking compensation remedies are available, governments need not fear that federal courts will invalidate their regulations as unconstitutional. Pp. 202–206.

862 F. 3d 310, vacated and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 206. KAGAN, J., filed a dissenting opinion, in which GINSBURG, BREYER, and SOTOMAYOR, JJ., joined, *post*, p. 207.

J. David Breemer argued and reargued the cause for petitioner. With him on the briefs were *Meriem L. Hubbard*, *Brian T. Hodges*, and *Christina M. Martin*.

Counsel

Solicitor General Francisco argued and reargued the cause for the United States as *amicus curiae* urging vacatur and remand. With him on the briefs were *Principal Deputy Solicitor General Wall*, *Acting Assistant Attorneys General Wood and Readler*, *Deputy Assistant Attorneys General Grant and Mooppan*, and *Brian H. Fletcher*, *William B. Lazarus*, and *Brian C. Toth*.

Teresa Ficken Sachs argued and reargued the cause for respondents. With her on the briefs were *Mark J. Kozlowski*, *Matthew Littleton*, and *David T. Goldberg*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Texas et al. by *Ken Paxton*, Attorney General of Texas, *Jeffrey C. Mateer*, First Assistant Attorney General, *Scott A. Keller*, Solicitor General, *Bill Davis*, Assistant Solicitor General, and *Mike Hunter*, Attorney General of Oklahoma; for AARP et al. by *Julie Nepveu* and *William Alvarado Rivera*; for the American Farm Bureau Federation et al. by *Timothy S. Bishop*, *Chad M. Clamage*, *Bill Thomas*, *Ellen Steen*, and *Scott Yager*; for the Cato Institute et al. by *Ilya Shapiro*, *Ilya Somin*, *Kimberly S. Hermann*, *Manuel S. Klausner*, *Karen R. Harned*, *Luke A. Wake*, and *Braden Boucek*; for the Justice and Freedom Fund by *James L. Hirszen* and *Deborah J. Dewart*; for the National Association of Home Builders by *Devala A. Janardan* and *Thomas J. Ward*; for the Ohio Farm Bureau Federation by *Bruce L. Ingram*, *Joseph R. Miller*, *Thomas H. Fusonie*, and *Daniel E. Shuey*; for San Remo Hotel, L. P., et al. by *Paul F. Utrecht*; for the Washington Legal Foundation et al. by *Richard A. Samp*; and for the Western Manufactured Housing Communities Association by *R. S. Radford*.

Briefs of *amici curiae* urging affirmance were filed for the State of California et al. by *Xavier Becerra*, Attorney General of California, *Nicole U. Rinke* and *Jessica Tucker-Mohl*, Deputy Attorneys General, *Daniel A. Olivas*, Senior Assistant Attorney General, *Edward C. DuMont*, Solicitor General, and *Joshua A. Klein* and *Christina Bull Arndt*, Deputy Solicitors General, and joined by the Attorneys General for their respective jurisdictions as follows: *Matthew P. Denn* of Delaware, *Karl A. Racine* of the District of Columbia, *Curtis T. Hill, Jr.*, of Indiana, *Tom Miller* of Iowa, *Jeff Landry* of Louisiana, *Janet T. Mills* of Maine, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Lori Swanson* of Minnesota, *Gurbir S. Grewal* of New Jersey, *Hector Balderas* of New Mexico, *Barbara D. Underwood* of New York, *Ellen F. Rosenblum* of Oregon, *Peter F. Kilmartin* of Rhode Island, *Sean D. Reyes* of Utah, *Thomas J. Dono-*

Opinion of the Court

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

The Takings Clause of the Fifth Amendment states that “private property [shall not] be taken for public use, without just compensation.” In *Williamson County Regional Planning Comm’n v. Hamilton Bank of Johnson City*, 473 U. S. 172 (1985), we held that a property owner whose property has been taken by a local government has not suffered a violation of his Fifth Amendment rights—and thus cannot bring a federal takings claim in federal court—until a state court has denied his claim for just compensation under state law.

The *Williamson County* Court anticipated that if the property owner failed to secure just compensation under state law in state court, he would be able to bring a “ripe” federal takings claim in federal court. See *id.*, at 194. But as we later held in *San Remo Hotel, L. P. v. City and County of San Francisco*, 545 U. S. 323 (2005), a state court’s resolution of a claim for just compensation under state law generally has preclusive effect in any subsequent federal suit. The takings plaintiff thus finds himself in a Catch-22: He cannot go to federal court without going to state court first;

van, Jr., of Vermont, and *Robert W. Ferguson* of Washington; for the National Governors Association et al. by *Matthew D. Zinn*, *Andrew W. Schwartz*, *Laura D. Beaton*, and *Lisa E. Soronen*; and for Takings and Federal Courts Scholars by *Kathryn E. Kovacs*, *pro se*.

Briefs of *amici curiae* were filed for the American Planning Association by *John M. Baker* and *Katherine M. Swenson*; for the Becket Fund for Religious Liberty by *Lori H. Windham*, *Eric C. Rassbach*, *Eric Baxter*, and *Daniel Ortner*; for Cemetery Law Scholars by *Ryan M. Seidemann* and *Tanya D. Marsh*, both *pro se*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for the Citizens’ Alliance for Property Rights Legal Fund et al. by *Robert H. Thomas*; for Congressman Steve King et al. by *Timothy S. Hollister*; for the Institute for Justice et al. by *Michael M. Berger*; and for the New England Legal Foundation by *John Pagliaro* and *Martin J. Newhouse*.

Opinion of the Court

but if he goes to state court and loses, his claim will be barred in federal court. The federal claim dies aborning.

The *San Remo* preclusion trap should tip us off that the state-litigation requirement rests on a mistaken view of the Fifth Amendment. The Civil Rights Act of 1871, after all, guarantees “a federal forum for claims of unconstitutional treatment at the hands of state officials,” and the settled rule is that “exhaustion of state remedies ‘is *not* a prerequisite to an action under [42 U. S. C.] § 1983.’” *Heck v. Humphrey*, 512 U. S. 477, 480 (1994) (quoting *Patsy v. Board of Regents of Fla.*, 457 U. S. 496, 501 (1982)). But the guarantee of a federal forum rings hollow for takings plaintiffs, who are forced to litigate their claims in state court.

We now conclude that the state-litigation requirement imposes an unjustifiable burden on takings plaintiffs, conflicts with the rest of our takings jurisprudence, and must be overruled. A property owner has an actionable Fifth Amendment takings claim when the government takes his property without paying for it. That does not mean that the government must provide compensation in advance of a taking or risk having its action invalidated: So long as the property owner has some way to obtain compensation after the fact, governments need not fear that courts will enjoin their activities. But it does mean that the property owner has suffered a violation of his Fifth Amendment rights when the government takes his property without just compensation, and therefore may bring his claim in federal court under § 1983 at that time.

I

Petitioner Rose Mary Knick owns 90 acres of land in Scott Township, Pennsylvania, a small community just north of Scranton. Knick lives in a single-family home on the property and uses the rest of the land as a grazing area for horses and other farm animals. The property includes a small graveyard where the ancestors of Knick’s neighbors are al-

Opinion of the Court

legedly buried. Such family cemeteries are fairly common in Pennsylvania, where “backyard burials” have long been permitted.

In December 2012, the Township passed an ordinance requiring that “[a]ll cemeteries . . . be kept open and accessible to the general public during daylight hours.” The ordinance defined a “cemetery” as “[a] place or area of ground, whether contained on private or public property, which has been set apart for or otherwise utilized as a burial place for deceased human beings.” The ordinance also authorized Township “code enforcement” officers to “enter upon any property” to determine the existence and location of a cemetery. App. 21–23.

In 2013, a Township officer found several grave markers on Knick’s property and notified her that she was violating the ordinance by failing to open the cemetery to the public during the day. Knick responded by seeking declaratory and injunctive relief in state court on the ground that the ordinance effected a taking of her property. Knick did not seek compensation for the taking by bringing an “inverse condemnation” action under state law. Inverse condemnation is “a cause of action against a governmental defendant to recover the value of property which has been taken in fact by the governmental defendant.” *United States v. Clarke*, 445 U. S. 253, 257 (1980) (quoting D. Hagman, *Urban Planning and Land Development Control Law* 328 (1971); emphasis deleted). Inverse condemnation stands in contrast to direct condemnation, in which the government initiates proceedings to acquire title under its eminent domain authority. Pennsylvania, like every other State besides Ohio, provides a state inverse condemnation action. 26 Pa. Cons. Stat. § 502(c) (2009).¹

¹ A property owner in Ohio who has suffered a taking without compensation must seek a writ of mandamus to compel the government to initiate condemnation proceedings. See, e.g., *State ex rel. Doner v. Zody*, 130 Ohio St. 3d 446, 2011-Ohio-6117, 958 N. E. 2d 1235.

Opinion of the Court

In response to Knick’s suit, the Township withdrew the violation notice and agreed to stay enforcement of the ordinance during the state court proceedings. The court, however, declined to rule on Knick’s request for declaratory and injunctive relief because, without an ongoing enforcement action, she could not demonstrate the irreparable harm necessary for equitable relief.

Knick then filed an action in Federal District Court under 42 U. S. C. § 1983, alleging that the ordinance violated the Takings Clause of the Fifth Amendment.² The District Court dismissed Knick’s takings claim under *Williamson County* because she had not pursued an inverse condemnation action in state court. 2016 WL 4701549, *5–*6 (MD Pa., Sept. 8, 2016). On appeal, the Third Circuit noted that the ordinance was “extraordinary and constitutionally suspect,” but affirmed the District Court in light of *Williamson County*. 862 F. 3d 310, 314 (2017).

We granted certiorari to reconsider the holding of *Williamson County* that property owners must seek just compensation under state law in state court before bringing a federal takings claim under § 1983. 583 U. S. 1166 (2018).

II

In *Williamson County*, a property developer brought a takings claim under § 1983 against a zoning board that had rejected the developer’s proposal for a new subdivision. *Williamson County* held that the developer’s Fifth Amendment claim was not “ripe” for two reasons. First, the developer still had an opportunity to seek a variance from the

²Section 1983 provides: “Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law”

Opinion of the Court

appeals board, so any taking was therefore not yet final. 473 U. S., at 186–194. Knick does not question the validity of this finality requirement, which is not at issue here.

The second holding of *Williamson County* is that the developer had no federal takings claim because he had not sought compensation “through the procedures the State ha[d] provided for doing so.” *Id.*, at 194. That is the holding Knick asks us to overrule. According to the Court, “if a State provides an adequate procedure for seeking just compensation, the property owner cannot claim a violation of the [Takings] Clause until it has used the procedure and been denied just compensation.” *Id.*, at 195. The Court concluded that the developer’s federal takings claim was “premature” because he had not sought compensation through the State’s inverse condemnation procedure. *Id.*, at 197.

The unanticipated consequences of this ruling were not clear until 20 years later, when this Court decided *San Remo*. In that case, the takings plaintiffs complied with *Williamson County* and brought a claim for compensation in state court. 545 U. S., at 331. The complaint made clear that the plaintiffs sought relief only under the takings clause of the State Constitution, intending to reserve their Fifth Amendment claim for a later federal suit if the state suit proved unsuccessful. *Id.*, at 331–332. When that happened, however, and the plaintiffs proceeded to federal court, they found that their federal claim was barred. This Court held that the full faith and credit statute, 28 U. S. C. § 1738, required the federal court to give preclusive effect to the state court’s decision, blocking any subsequent consideration of whether the plaintiff had suffered a taking within the meaning of the Fifth Amendment. 545 U. S., at 347. The adverse state court decision that, according to *Williamson County*, gave rise to a ripe federal takings claim simultaneously barred that claim, preventing the federal court from ever considering it.

Opinion of the Court

The state-litigation requirement relegates the Takings Clause “to the status of a poor relation” among the provisions of the Bill of Rights. *Dolan v. City of Tigard*, 512 U. S. 374, 392 (1994). Plaintiffs asserting any other constitutional claim are guaranteed a federal forum under § 1983, but the state-litigation requirement “hand[s] authority over federal takings claims to state courts.” *San Remo*, 545 U. S., at 350 (Rehnquist, C. J., concurring in judgment). Fidelity to the Takings Clause and our cases construing it requires overruling *Williamson County* and restoring takings claims to the full-fledged constitutional status the Framers envisioned when they included the Clause among the other protections in the Bill of Rights.

III

A

Contrary to *Williamson County*, a property owner has a claim for a violation of the Takings Clause as soon as a government takes his property for public use without paying for it. The Clause provides: “[N]or shall private property be taken for public use, without just compensation.” It does not say: “Nor shall private property be taken for public use, without an available procedure that will result in compensation.” If a local government takes private property without paying for it, that government has violated the Fifth Amendment—just as the Takings Clause says—without regard to subsequent state court proceedings. And the property owner may sue the government at that time in federal court for the “deprivation” of a right “secured by the Constitution.” 42 U. S. C. § 1983.

We have long recognized that property owners may bring Fifth Amendment claims against the Federal Government as soon as their property has been taken. The Tucker Act, which provides the standard procedure for bringing such claims, gives the Court of Federal Claims jurisdiction to

Opinion of the Court

“render judgment upon any claim against the United States founded either upon the Constitution” or any federal law or contract for damages “in cases not sounding in tort.” 28 U. S. C. § 1491(a)(1). We have held that “[i]f there is a taking, the claim is ‘founded upon the Constitution’ and within the jurisdiction of the Court of Claims to hear and determine.” *United States v. Causby*, 328 U. S. 256, 267 (1946). And we have explained that “the act of taking” is the “event which gives rise to the claim for compensation.” *United States v. Dow*, 357 U. S. 17, 22 (1958).

The Fifth Amendment right to full compensation arises at the time of the taking, regardless of post-taking remedies that may be available to the property owner. That principle was confirmed in *Jacobs v. United States*, 290 U. S. 13 (1933), where we held that a property owner found to have a valid takings claim is entitled to compensation as if it had been “paid contemporaneously with the taking”—that is, the compensation must generally consist of the total value of the property when taken, plus interest from that time. *Id.*, at 17 (quoting *Seaboard Air Line R. Co. v. United States*, 261 U. S. 299, 306 (1923)). We rejected the view of the lower court that a property owner is entitled to interest only when the government provides a particular remedy—direct condemnation proceedings—and not when the owner brings a takings suit under the Tucker Act. “The form of the remedy d[oes] not qualify the right. It rest[s] upon the Fifth Amendment.” 290 U. S., at 16.

Jacobs made clear that, no matter what sort of procedures the government puts in place to remedy a taking, a property owner has a Fifth Amendment entitlement to compensation as soon as the government takes his property without paying for it. Whether the government does nothing, forcing the owner to bring a takings suit under the Tucker Act, or whether it provides the owner with a statutory compensation remedy by initiating direct condemnation proceedings,

Opinion of the Court

the owner's claim for compensation "rest[s] upon the Fifth Amendment."

Although *Jacobs* concerned a taking by the Federal Government, the same reasoning applies to takings by the States. The availability of any particular compensation remedy, such as an inverse condemnation claim under state law, cannot infringe or restrict the property owner's federal constitutional claim—just as the existence of a state action for battery does not bar a Fourth Amendment claim of excessive force. The fact that the State has provided a property owner with a procedure that may subsequently result in just compensation cannot deprive the owner of his Fifth Amendment right to compensation under the Constitution, leaving only the state law right. And that is key because it is the existence of the Fifth Amendment right that allows the owner to proceed directly to federal court under § 1983.

Williamson County had a different view of how the Takings Clause works. According to *Williamson County*, a taking does not give rise to a federal constitutional right to just compensation at that time, but instead gives a right to a state law procedure that will eventually result in just compensation. As the Court put it, "if a State provides an adequate procedure for seeking just compensation, the property owner cannot claim a violation of the [Takings] Clause until it has used the procedure and been denied just compensation." 473 U. S., at 195. In the absence of a state remedy, the Fifth Amendment right to compensation would attach immediately. But, under *Williamson County*, the presence of a state remedy qualifies the right, preventing it from vesting until exhaustion of the state procedure. That is what *Jacobs* confirmed could not be done.

Just two years after *Williamson County*, in *First English Evangelical Lutheran Church of Glendale v. County of Los Angeles*, 482 U. S. 304 (1987), the Court returned to the understanding that the Fifth Amendment right to compensa-

Opinion of the Court

tion automatically arises at the time the government takes property without paying for it. Relying heavily on *Jacobs* and other Fifth Amendment precedents neglected by *Williamson County*, *First English* held that a property owner is entitled to compensation for the temporary loss of his property. We explained that “government action that works a taking of property rights necessarily implicates the ‘constitutional obligation to pay just compensation.’” 482 U. S., at 315. Because of “the self-executing character” of the Takings Clause “with respect to compensation,” a property owner has a constitutional claim for just compensation at the time of the taking. *Ibid.* (quoting *Clarke*, 445 U. S., at 257). The government’s post-taking actions (there, repeal of the challenged ordinance) cannot nullify the property owner’s existing Fifth Amendment right: “[W]here the government’s activities have already worked a taking of all use of property, no subsequent action by the government can relieve it of the duty to provide compensation.” 482 U. S., at 321.³

In holding that a property owner acquires an irrevocable right to just compensation immediately upon a taking, *First English* adopted a position Justice Brennan had taken in an earlier dissent. See *id.*, at 315, 318 (quoting and citing *San Diego Gas & Elec. Co. v. San Diego*, 450 U. S. 621, 654–655, 657

³ *First English* distinguished *Williamson County* in a footnote, explaining that the case addressed only “whether the constitutional claim was ripe for review” before the State denied compensation. 482 U. S., at 320, n. 10. But *Williamson County* was based on the premise that there was no Fifth Amendment claim *at all* until the State denies compensation. Having rejected that premise, *First English* eliminated the rationale for the state-litigation requirement. The author of *First English* later recognized that it was “not clear . . . that *Williamson County* was correct in demanding that . . . the claimant must seek compensation in state court before bringing a federal takings claim in federal court.” *San Remo Hotel, L. P. v. City and County of San Francisco*, 545 U. S. 323, 349 (2005) (Rehnquist, C. J., concurring in judgment).